



IN THE FAMILY COURT

Case No: BV20D01752

Royal Courts of Justice
Strand, London, WC2A 2LL

Date: 29 April 2024

Before:

THE HONOURABLE MR JUSTICE MACDONALD

Between :

Nadia Zahmoul
- and -

Applicant

Karim Nouredine Zahmoul

Respondent

Permission Application dealt with on the papers

Approved Judgment

This judgment was handed down remotely at 10.30am on 29 April 2024 by circulation to the parties or their representatives by e-mail.

Mr Justice MacDonald:

1. On 18 April 2024 I handed down judgment in this matter following a final hearing of financial remedy proceedings between Nadia Zahmoul (hereafter ‘the wife’), who was represented at the final hearing by Mr Brent Molyneux KC and respondent husband, Karim Zahmoul (hereafter ‘the husband’), who was represented by Ms Alexis Campbell KC and Ms Sassa-Ann Amaouche. Since the final hearing, it would appear that both parties are now acting in person. The wife now seeks permission to appeal the judgment handed down on 18 April 2024.
2. No draft final order has yet been submitted to the court by the parties but the judgment has been finalised and handed down and it is clear that the wife’s application for permission appeal concerns the approach taken by the court in that judgment. In the circumstances, I am satisfied that it is appropriate to deal expeditiously with the wife’s application to this court for permission to appeal in circumstances where, if permission is refused, the wife is entitled to renew her application for permission to appeal to the Court of Appeal. In this context, I deem the wife’s application for permission to appeal to have been made orally in compliance with paragraph 4.2 of PD30A.
3. The long history of the proceedings and the evidence on which the court made its decision is set out in detail in the judgment. Ahead of the computation exercise, the key issue for the court to determine was whether, as alleged by the wife, the husband had failed to disclose vast hidden assets, which the wife contended amounted to between £170M and £210M.
4. Having considered the evidence and the submissions of leading counsel, I rejected the wife’s case on non-disclosure for the detailed reasons set out in the judgment and concluded on the balance of probabilities that the matrimonial assets available for distribution were as set out in the ES2 provided for the final hearing by the husband (the wife did not provide an ES2 for the final hearing).
5. Having computed the matrimonial assets, I thereafter decided it was appropriate to add back a sum to account for what I was satisfied, for the reasons set out in the judgment, was an obvious cases of reckless expenditure on legal costs by the wife, being satisfied that an order for costs would not provide a just remedy for the wife’s reckless approach because such an order will not remedy the effect of there being less wealth to be distributed between the parties. Having regard to the evidence, I was satisfied that the sum to be added back was £800,000.
6. With respect to distribution, for the detailed reasons set out in the judgment, I concluded that the distribution of the matrimonial assets detailed in the judgment, comprising an overall division of 52% to the wife and 48% to the husband, represented the proper outcome in the case on the basis of a clean break between the parties. I was satisfied that that sharing award was sufficient to meet the wife’s future needs.
7. The grounds of appeal provided by the wife to the court are discursive and accompanied by a large number of other documents, some sent under cover of separate emails. However, doing the best I can the wife’s grounds of appeal appear to be as follows:

- i) The court failed to have regard to information submitted to the court by the wife following the conclusion of evidence and submissions and to give reasons for refusing to have regard to that information.
 - ii) The court failed to consider allegations that the husband is involved in money laundering on behalf of criminal third parties with whom he has business associations.
 - iii) The court was wrong to conclude that the wife had failed to evidence the loan from her father and to take that loan into account.
 - iv) The court failed to have regard to the wife's allegations of domestic abuse and coercive control when reaching its decision and failed to treat the wife as a vulnerable party.
 - v) The court was wrong to conclude that the husband had not been guilty of non-disclosure with respect to Coinbase, Gemini and XAPO.
 - vi) The court was wrong to refuse to provide adequate security against assert forfeiture in circumstances where the husband is engaged in laundering the proceeds of prostitution.
 - vii) The court failed to give proper weight to the wife's allegation that the husband had engaged in fraudulent conduct with respect to his US tax return.
8. With respect to the first ground, the information sent to the court by the wife following the conclusion of evidence and submissions was provided by way of an email to the court on 7 March 2024. The information was not provided to the court in accordance with the provisions of the FPR 2010, was not accompanied by a statement of evidence and no application was made to re-open the evidence following the conclusion of the final hearing.
9. The email of 7 March 2024 contained information concerning a merger said to have taken place on 8 February 2024 involving Oxus and which the wife advanced as further evidence of non-disclosure by the husband, contending the evidence was not consistent with his oral testimony regarding his role with Oxus and the value of his founders shares. Further email communications followed from the wife with extensive attachments, some of which were not copied to the husband or his representatives and some of the material attached to them was stated to be confidential to the court. As with other aspects of the wife's evidence, the allegations raised by the wife were difficult to follow.
10. In its judgment, the court recorded that the husband's role as a non-executive director of Oxus Acquisition Corp at paragraph 9. As set out at paragraph 76 of the judgment, the wife did not appear to dispute that the Oxus venture was non-matrimonial in nature. No submissions to the contrary were made during closing submissions. In the circumstances, the court was entitled to disregard the further material submitted by the wife concerning non-matrimonial assets which, in any event, was not provided to the court in accordance with the provisions of the FPR 2010, were not exhibited to a statement of evidence and where no application was made to re-open the evidence following the conclusion of evidence and submissions.

11. With respect to the second ground, that the court failed to consider allegations that the husband is involved in money laundering on behalf of criminal third parties with whom he has business associations, following the conclusion of evidence and submissions the wife has continued to send to the court documents prepared by her that contain allegations of the husband being involved unlawful activity, including new material not produced at the final hearing. No evidence was led on these matters at the final hearing and the husband was not cross-examined on those matters. The court was not invited during closing submissions to make findings of money laundering or other criminal behaviour. In the circumstances, the wife cannot succeed on this ground. Further, in this context, the court was not wrong to decline to provide the wife with security against the future forfeiture of matrimonial assets awarded to her as contended for by her sixth ground of appeal.
12. With respect to the wife's contention, by way of her third ground of appeal, that the court was wrong to conclude that the wife had failed to evidence the loan from her father and to take that loan into account, as explained in the judgment, the court was satisfied that the wife had failed to produce for the court evidence of the loan and excluded it from the computation accordingly. That conclusion was justified on the material before the court and was a conclusion that the court was entitled to reach in the circumstances.
13. With respect to the wife's contention by her fourth ground that the court failed to have regard to the wife's allegations of domestic abuse and coercive control when reaching its decision, the court was not invited to make findings with respect to domestic abuse or coercive and controlling behaviour and the wife did not close her case on the basis that the court should take into account domestic abuse and coercive and controlling behaviour as conduct for the purposes of the Matrimonial Causes Act 1973 s.25(g). In the circumstances, the court was entitled not to have regard to the wife's allegations in reaching its decision.
14. With respect to the wife's linked contention that the court failed to treat her as a vulnerable party, consistent with the court's obligations under FPR 2010 Part 3A, the court both sought to ensure additional time was provided to the wife to give instructions to her legal team and that the wife was able to sit behind a curtain during the course of the husband's evidence to ensure that she did not have to look at him.
15. With respect to the wife's contention by her fifth ground of appeal that the court reached the wrong conclusion with respect to her allegations of non-disclosure regarding Coinbase, Gemini and XAPO, the court set out in its judgment in clear terms the evidence and its reasons for reaching the decision it did on those issues. Having regard to the evidence before the court, and for the reasons set out in the judgment, the court was entitled to come to the conclusion it did on the evidence before it.
16. Finally, with respect to the wife's assertion by her seventh ground of appeal that the court failed to give proper weight to the wife's allegation that the husband had engaged in fraudulent conduct with respect to his US tax return, the approach taken by the court was consistent with the evidence before the court on this issue.
17. In her grounds of appeal document the wife further alludes to issues of apparent bias but does not clearly articulate an grounds of appeal in that regard. The wife also asserts that the husband's ES2 contained "false numbers". The court set out in clear terms in

the judgment the basis on which it arrived at the computation of matrimonial assets that it did.

18. In the circumstances set out above, I am satisfied that the grounds of appeal relied on by the wife do not have a real prospect of success. In the circumstances, I refuse permission to appeal.
19. In a later email to the court, the wife asked the court to “stay the proceedings”. I am likewise satisfied that it would not be appropriate to grant a stay.
20. The order has not yet been submitted to the court and it is not clear therefore what the court would be staying at this stage. The wife is entitled to renew her application for permission to appeal to the Court of Appeal. The court has directed that an agreed draft final order be submitted by the parties by 3 May 2024. If the wife renews her application for permission to appeal to the Court of Appeal, the question of a stay can be considered by the Court of Appeal at that stage having regard to the terms of the final order approved by this court.